

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



July 9, 2018

Honorable Peter M. Schultz
Judge of the Superior Court
County of Kings
1640 Kings County Drive
Kings, CA 93230

Re: Lobretto, Timothy
CDC No.: V61301
Case No.: 01CM2044
Date of Sentence: November 30, 2004

Dear Honorable Peter M. Schultz:

The purpose of this letter is to provide the court with authority to resentence Timothy Lobretto pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Lobretto was sentenced in 2004, and was convicted of section 245, subdivision (a)(1), Assault Likely to Produce. The trial court sentenced inmate Lobretto on November 30, 2004. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Lobretto's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Lobretto's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,



SCOTT KERNAN
Secretary

Enclosures:
Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Felony Information

cc: Honorable Donna L. Tarter, Kings County Presiding Judge
Kings District Attorney
Public Defender

FELONY ABSTRACT OF JUDGMENT - DETERMINATE
(NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-290 ATTACHED)

V61301

CR-290

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: KINGS					
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: TIMOTHY LOBRETTO		DOB: 07-25-60	01CM 2044 -A -B -C -D		
AKA:					
CII NO.: A22914730		☐ NOT PRESENT			
BOOKING NO.: 04-255183					
FELONY ABSTRACT OF JUDGMENT ☒ PRISON COMMITMENT ☐ COUNTY JAIL COMMITMENT		☒ AMENDED ABSTRACT			
DATE OF HEARING 11-30-04	DEPT. NO. 02	JUDGE PETER M. SCHULTZ			
CLERK SUSIE CHAPA	REPORTER DAWN BICKNER	PROBATION NO. OR PROBATION OFFICER ☐ IMMEDIATE SENTENCING ALICE FUJISAWA			
COUNSEL FOR PEOPLE MICHAEL REINHART, D.D.A.		COUNSEL FOR DEFENDANT ☒ APPOINTED JAMES OLIVER			

1. Defendant was convicted of the commission of the following felonies:

☒ Additional counts are listed on attachment
1 (number of pages attached)

☒ Additional counts are listed on attachment 1 (number of pages attached)

COUNT	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YR.)	CONVICTED BY			TERM (L, M, Y)	CONCURRENT	1/3 CONSECUTIVE	CONSECUTIVE FULL TERM	INCOMPLETE SENTENCE (refer to item 5)	654 STAY	SERIOUS FELONY	VIOLENT FELONY	PRINCIPAL OR CONSECUTIVE TIME IMPOSED	
						JURY	COURT	PLEA									YRS	MOS.
06	PC	245(a)(1)	ASSAULT LIKELY TO PRODUCE	2001	10/28/04	X			M								3	0
15	PC	211**	SECOND DEGREE ROBBERY	2001	10/28/04	X			M		X					X	1	0
13	PC	236	FALSE IMPRISONMENT	2001	10/28/04	X			M		X						0	8
05	PC	459**	SECOND DEGREE BURGLARY	2001	10/28/04	X			M		X						0	8
14	PC	211**	SECOND DEGREE ROBBERY	2001	10/28/04	X			M	X						X	(3	0)
03	PC	211**	SECOND DEGREE ROBBERY	2001	10/28/04	X								X				

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

COUNT	ENHANCEMENT	TIME IMPOSED, "S" or "PS"	ENHANCEMENT	TIME IMPOSED, "S" or "PS"	ENHANCEMENT	TIME IMPOSED, "S" or "PS"	TOTAL
06	12022.7PC	3	186.22(b)(1)	10			13 0
15	186.22(b)(1)PC	3Y4M					3 4
13	186.22(b)(1)PC	1					1 0
05	186.22(b)(1)PC	1					1 0
14	186.22(b)(1)PC	(10)					(10) 0
03	186.22(b)(1)PC	S					

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed, "S" for stayed, or "PS" for punishment struck. DO NOT LIST ENHANCEMENTS FULLY STRICKEN by the court.

ENHANCEMENT	TIME IMPOSED, "S" or "PS"	ENHANCEMENT	TIME IMPOSED, "S" or "PS"	ENHANCEMENT	TIME IMPOSED, "S" or "PS"	TOTAL

4. Defendant sentenced ☐ to county jail per PC 1170(h)(1) or (2)
☒ to prison per PC 1170(a), 1170.1(a) or 1170(h)(3) due to ☒ current or prior serious or violent felony ☐ PC 290 or ☐ PC 186.11 enhancement
☐ per PC 667(b)-(i) or PC 1170.12 (strike prior)
☐ per PC 1170(a)(3). Pre-confinement credits equal or exceed time imposed. ☐ Defendant ordered to report to local parole or probation office.

5. INCOMPLETED SENTENCE(S) CONSECUTIVE

COUNTY	CASE NUMBER

6. TOTAL TIME ON ATTACHED PAGES: **0** **0**

7. ☐ Additional indeterminate term (see CR-292).

8. TOTAL TIME: **23** **8**

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for determinate sentences. Attachments may be used but must be referred to in this document.

PEOPLE OF THE STATE OF CALIFORNIA vs.
 DEFENDANT: **TIMOTHY LOBRETTO**

01CM 2044

-A

-B

-C

-D

9. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

a. Restitution Fines:

Case A: \$5,000 per PC 1202.4(b) (forthwith per PC2085.5 if prison commitment); \$5,000 per PC 1202.45 suspended unless parole is revoked.
 \$_____ per PC 1202.44 is now due, probation having been revoked.

Case B: \$_____ per PC 1202.4(b) (forthwith per PC2085.5 if prison commitment); \$_____ per PC 1202.45 suspended unless parole is revoked.
 \$_____ per PC 1202.44 is now due, probation having been revoked.

Case C: \$_____ per PC 1202.4(b) (forthwith per PC2085.5 if prison commitment); \$_____ per PC 1202.45 suspended unless parole is revoked.
 \$_____ per PC 1202.44 is now due, probation having been revoked.

Case D: \$_____ per PC 1202.4(b) (forthwith per PC2085.5 if prison commitment); \$_____ per PC 1202.45 suspended unless parole is revoked.
 \$_____ per PC 1202.44 is now due, probation having been revoked.

b. Restitution per PC 1202.4(f):

Case A: \$RESERVED ☒ Amount to be determined to ☒ victim(s)* ☐ Restitution Fund

Case B: \$_____ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

Case C: \$_____ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

Case D: \$_____ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

☐ * Victim name(s), if known, and amount breakdown in item 13, below. ☐ * Victim names(s) in probation officer's report.

c. Fines:

Case A: \$_____ per PC 1202.5. \$_____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$_____ Lab Fee per HS 11372.5(a) ☐ \$_____ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

Case B: \$_____ per PC 1202.5. \$_____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$_____ Lab Fee per HS 11372.5(a) ☐ \$_____ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

Case C: \$_____ per PC 1202.5. \$_____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$_____ Lab Fee per HS 11372.5(a) ☐ \$_____ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

Case D: \$_____ per PC 1202.5. \$_____ per VC 23550 or _____ days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$_____ Lab Fee per HS 11372.5(a) ☐ \$_____ Drug Program Fee per HS 11372.7(a) for each qualifying offense.

d. Court Operations Assessment: \$_____ per PC 1465.8. e. Conviction Assessment: \$_____ per GC 70373. f. Other: \$_____ per (specify): _____

10. TESTING: ☐ Compliance with PC 296 verified ☐ AIDS per PC 1202.1 ☐ other (specify): _____

11. REGISTRATION REQUIREMENT: ☒ per (specify code section): 186.30PC

12. ☐ MANDATORY SUPERVISION: Execution of a portion of the defendant's sentence is suspended and deemed a period of mandatory supervision under Penal Code section 1170(h)(5)(B) as follows (specify total sentence, portion suspended, and amount to be served forthwith):

Total: ☐ Suspended: ☐ Served forthwith: _____

13. Other orders (specify):

COUNTS 1&2 - BOTH 236PC- MISDEMEANORS ARE STAYED PURSUANT TO 654PC. DEFENDANT IS SENTENCED TO 6 MONTHS CONCURRENT FOR COUNTS 7- 240PC MISDEMEANOR

16. CREDIT FOR TIME SERVED:

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	277	241	36
B			
C			
D			
Date Sentence Pronounced		Time Served in State Institution:	
11-30-04		DMH	CDC CRC
		[]	[] []

14. IMMEDIATE SENTENCING: ☐ Probation to prepare and submit a post-sentence report to CDCR per 1203c.
 Defendant's race/national origin: _____

15. EXECUTION OF SENTENCE IMPOSED

- a. ☒ at initial sentencing hearing
 b. ☐ at resentencing per decision on appeal
 c. ☐ after revocation of probation
 d. ☐ at resentencing per recall of commitment. (PC 1170(d).)
 e. ☐ other (specify): _____

17. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
 To be delivered to ☐ the reception center designated by the director of the California Department of Corrections and Rehabilitation.
☐ county jail ☒ other (specify): **WASCO STATE PRISON**

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE

KIM COTTA, Courtroom Clerk

DATE

11-05-15

CR-290(A)

01CM 2044 -A

•B

10

—D

- [illegible]

- [illegible]

- | ENHANCEMENT | TIME IMPOSED
OR'S FOR
STAYED | ENHANCEMENT | TIME IMPOSED
OR'S FOR
STAYED | ENHANCEMENT | TIME IMPOSED
OR'S FOR
STAYED | TOTAL | |
|-------------|------------------------------------|-------------|------------------------------------|-------------|------------------------------------|-------|--|
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